

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #09	CCRB Case #: 202007535	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 05/30/2020 3:30 PM	Location of Incident: East 83rd Street and Park Avenue	18 Mo. SOL 5/4/2022	Precinct: 19
Date/Time CV Reported Mon, 06/01/2020 11:27 AM	CV Reported At: Mayor's Office	How CV Reported: E-mail	Date/Time Received at CCRB Fri, 11/13/2020 3:32 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Stephen Centore	31854	936328	DIS CTL

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Steven Lackos	04638	935671	DIS CTL
2. POM Justin Barberi	25008	957356	SRG 5
3. POM Orvin Feliciano	22257	942855	SRG 2
4. POM Craig Martinez	02429	937915	DIS CTL
5. SGT Michael Ciota	04123	936356	SRG 3
6. POM Mauricio Thomas	26957	945466	SRG 2
7. POM Anthony Polanco	11613	951068	SRG 2
8. POM Bryan Wilson	10392	942712	SRG 2
9. POM Patrick Gross	21147	958657	SRG 1
10. POM James Lee	19325	952975	SRG 2
11. POM Michael Prior	18462	952130	SRG 3
12. SGT Steven Minero	4978	947256	PA UPTU
13. CPT David Miller	00000	911741	DIS CTL
14. POM Anthony Lardo	17722	967955	019 PCT
15. POM Arthur Wright	16740	947619	019 PCT
16. SGT Francis Lavelle	2680	927062	TB DT20
17. POF Dysmairy Dejesus	17479	958478	019 PCT
18. SGT Sukhdeep Toor	05393	939588	SRG 4
19. POM Marcello Massafra	12836	945620	019 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Stephen Centore	Force: Police Officer Stephen Centore used physical force against an individual.	A . Substantiated
B . POM Stephen Centore	Force: Police Officer Stephen Centore hit an individual against a vehicle.	B . Substantiated
C . POM Stephen Centore	Force: Police Officer Stephen Centore used physical force against an individual.	C . Unfounded

Officer(s)	Allegation	Investigator Recommendation
D . POM Stephen Centore	Discourtesy: Police Officer Stephen Centore spoke discourteously to individuals.	D . Unfounded
E . POM Stephen Centore	Force: Police Officer Stephen Centore hit § 87(2)(b) against a vehicle.	E . Unfounded

Case Summary

§ 87(2)(b) filed this complaint via email to the mayor's office on June 1, 2020. The email was later forwarded to the CCRB, where it was received on November 13, 2020.

On May 30, 2020, at approximately 3:30 PM, § 87(2)(b) and a friend, § 87(2)(b) encountered a group of police officers who had created a cordon across Park Avenue, on the north side of East 83rd Street in Manhattan. Present among the officers were Captain David Miller and PO Stephen Centore of Disorder Control. The officers were heading off a group of protesters marching southbound along Park Avenue.

§ 87(2)(b) and § 87(2)(b) crossed through the police cordon and joined the protesters just before officers began to make arrests. As § 87(2)(b) and § 87(2)(b) stood in the roadway and watched, PO Centore used his NYPD bicycle to shove an unidentified individual against a parked scooter and then to the ground (**Allegations A and B: Force, Substantiated**). PO Centore then allegedly stepped on that individual's legs and wheeled his bicycle over her body (**Allegation C: Force, Unfounded**). PO Centore also allegedly said to unspecified protesters, "Back the fuck up" (**Allegation D: Discourtesy, Unfounded**). Lastly, PO Centore allegedly pushed § 87(2)(b) against a parked scooter (**Allegation E: Force, Unfounded**).

This incident resulted in mass arrests, but neither § 87(2)(b) nor § 87(2)(b) was arrested, and neither received a summons.

The investigation obtained BWC videos from numerous officers on scene, as well as a cell phone video recorded by § 87(2)(b).

This case was reassigned from Inv. Manginelli to Inv. Ross on June 16, 2021.

Findings and Recommendations

Allegation (A) Force: Police Officer Stephen Centore used physical force against an individual.

Allegation (B) Force: Police Officer Stephen Centore hit an individual against a vehicle.

Allegation (C) Force: Police Officer Stephen Centore used physical force against an individual.

Although § 87(2)(b) filed this complaint, she did not cooperate with the investigation and did not provide a statement.

§ 87(2)(b) stated that she watched as PO Centore used his bicycle to shove an unidentified woman to the ground. He then stepped on the woman's legs and wheeled his bicycle over her body.

As noted, § 87(2)(b) provided a cell phone video (Board Review 01). Between the 2 minute 5 second mark and the 2 minute 15 second mark, this video partially captures PO Centore's interaction with the female protester in question, who has braided hair or dreadlocks, and who wears a purple shirt. This video does not, however, show the portion of the incident in question.

PO Centore stated that after officers were ordered to make arrests, he and other bicycle officers walked forward with their bicycles to create a safe area for other officers to make arrests. He lifted his bicycle by the seat and the fork and pushed it forward two or three feet at a time in order to move civilians. He believed that, depending on the circumstances, he was permitted to bring the

bicycle into contact with civilians while pushing it forward.

As PO Centore advanced, a female protester with dreadlocks and wearing a purple shirt refused to move out of the street. PO Centore attempted to use his bicycle to guide her out of the street. She pushed her right shoulder towards PO Centore so as not to be moved. PO Centore guided her with his bicycle and hit her torso once. As he did so, the woman fell to the ground. He thought that she was wearing flip flops or loafers, was back peddling, and tripped over her shoes. She fell onto her rear and did not appear to be injured. PO Centore did not step onto or over the woman and did not move his bicycle on top of her.

PO Centore's BWC video (Board Review 02) captured this interaction between the 1 minute 23 second mark and the 1 minute 37 second mark. The video shows PO Centore approaching the female protester as a male voice says, "Get out of the way," several times. PO Centore then shouts, ordering her to move back. Her attention appears to be directed at another officer. When she does not move back, PO Centore uses his bicycle to shove her backward several times, pushing her against a parked scooter and ultimately causing her to fall to the ground. The video does not appear to show PO Centore stepping onto the woman in question or moving his bicycle on top of her.

BWC video recorded by PO Craig Martinez of Disorder Control also captured the interaction in question, between the 2 minute 10 second mark and the 2 minute 20 second mark (Board Review 03). The video captures PO Centore pushing the woman to the ground with his bicycle, but also reveals that he did not step onto her or move his bicycle onto her.

Captain Miller supervised the bicycle officers on scene. He stated that he instructed bicycle officers to form a cordon to deter the protesters. However, the protesters continued southbound and encountered his officers. An LRAD message instructed protesters to clear the road and move onto the sidewalk or else be subject to arrest. The officers waited several minutes for the protesters to comply. An unidentified deputy inspector then ordered that the protesters be arrested. Officers advanced and arrested protesters, but Captain Miller did not recall seeing officers use their bicycles to push protesters. Captain Miller believed that if a protester encroached into an officer's "zone of safety," the officer could push the protester back with their bicycle. However, he did not believe that he instructed officers to push their bicycles into protesters.

Per NYPD Patrol Guide Procedure 221-01 (Force Guidelines), an officer may use force when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances (Board Review 04).

Here, PO Centore advanced with other bicycle officers at the instruction of supervisors, who ordered officers to clear the roadway and arrest protesters who did not comply. § 87(2)(g) PO Centore approached while her attention was directed elsewhere, pushed his bicycle against her immediately, and gave her no chance to react before he did so. He advanced and pushed her again. He did so until she collided with a parked scooter and then fell backward onto the pavement. § 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **substantiated**.

§ 87(2)(g) PO Centore's and PO Martinez's BWC videos show that PO Centore did not step onto or move his bicycle onto the protester in question after pushing her to the ground. It is therefore recommended that **Allegation C** be closed as **unfounded**.

Allegation (D) Discourtesy: Police Officer Stephen Centore spoke discourteously to individuals.

According to § 87(2)(b) at an unspecified time during this incident she witnessed involving PO Centore, PO Centore said to unspecified protesters, "Get the fuck back." PO Centore did not recall making any such statement, and his BWC video, which captures this portion of the incident, did not capture him making this statement. § 87(2)(g) it is recommended that **Allegation D** be closed as **unfounded**.

Allegation (E) Force: Police Officer Stephen Centore hit § 87(2)(b) against a vehicle.

§ 87(2)(b) stated that PO Centore used his bicycle to push § 87(2)(b) against a parked vehicle. She also stated that PO Centore scratched § 87(2)(b) shoulder in the process. As noted, § 87(2)(b) did not provide a statement to the investigation, but in her initial complaint she reported sustaining a scrape and a bruise on her arm.

PO Centore did not recall using his bicycle to move any protester out of the street other than the woman described in the analysis of Allegations A and B, above.

§ 87(2)(b) cell phone video (Board Review 01) shows PO Centore approaching her at the 2 minute 8 second mark, but this video does not clearly show what physical contact took place.

PO Centore's BWC (Board Review 02) captured his interaction with § 87(2)(b). Beginning at the 1 minute 25 second mark, as PO Centore is pushing the woman with braids or dreadlocks and a purple shirt, § 87(2)(b) stands in the street behind that woman, at the rear driver side of a white sedan, and near a red motor scooter. § 87(2)(b) has long, dark hair and wears a gray sleeveless top and black skirt. At the 1 minute 29 second mark, as PO Centore pushes the woman with braids or dreadlocks and a purple shirt, the grip on the handlebar of his bicycle briefly makes contact with § 87(2)(b) right shoulder. § 87(2)(b) immediately moves away, into the space between the white sedan and the red scooter. The handlebar briefly touches her upper right arm again as she maneuvers between two other male protesters and then moves onto the sidewalk. This BWC video also reveals that PO Centore had no other interaction with § 87(2)(b).

§ 87(2)(g)
it is recommended that **Allegation E** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 06).

- PO Centore has been a member of service for 16 years and has been a subject in three other CCRB complaints with nineteen allegations, none of which have been substantiated. Cases #202004055 and #202104301 also include allegations that PO Centore used physical force during protests in May and June of 2020. Both cases are pending investigation as of the writing of this report.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of July 21, 2021, the Office of the Comptroller had no record of any Notice of Claim filed regarding this incident.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 2

Investigator:	<u>Samuel Ross</u> Signature	<u>Inv. Samuel Ross</u> Print Title & Name	<u>10/04/2021</u> Date
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Squad Leader:	<u>Monique West</u> Signature	<u>IM Monique West</u> Print Title & Name	<u>XX/XX/XXXX</u> Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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